

26STCV04000 26STCV04000

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-06-26

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Case Number: 26STCV04000 Hearing Date: June 26, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

A GREENER TOMORROW, INC.,

vs.

JOSH PORTER.

Case No.:

26STCV04000

Hearing Date: June 26, 2026

Defendant Josh

Porter's unopposed motion to

consolidate the instant case with the related Case No. 26STCV00341 is denied.

Defendant

Josh Porter ("Porter") ("Defendant") moves unopposed to consolidate the

instant case with the first-filed, related case, Joshua Porter v. A Greener

Tomorrow, Inc., Case No. 26STCV00341, before Department 300. (Notice Motion, pgs. 2-3; CRC, Rule 3.350(a)(1).)[1]

Request

for Judicial Notice

Defendant's

4/10/26 request for judicial notice of (1) the Complaint filed by Defendant in Porter v. A Greener Tomorrow, Inc., Case No. 26STCV00341 ("First-Filed Action") (D-RJN, Exh. 1); (2) Notice of Case Assignment filed in the First-Filed Action (D-RJN, Exh. 2); and (3) Demurrer filed by A Greener Tomorrow, Inc. in the First-Filed Action (D-RJN, Exh. 3) is granted.

Legal

Standard

C.C.P.

§1048(a) provides: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (C.C.P.

§1048(a).)

There

are two types of consolidation: (1) a complete consolidation resulting in a single action; and (2) a consolidation of separate actions for trial. Complete consolidation is appropriate where the parties are identical and the causes could have been joined at the outset.

In such circumstances, the pleadings are regarded as merged, one set of findings is made, and one judgment is rendered.

(Hamilton v. Asbestos Corp., Ltd. (2000) 22 Cal.4th 1127, 1147.)

Where

the actions at issue present essentially the same or overlapping issues, they should be consolidated and disposed of as a single proceeding. (Spector v. Superior Court of San Mateo County (1961) 55 Cal.2d 839, 844.)

The purpose underlying the consolidation of actions is to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions.

(McClure, on Behalf of Caruthers v. Donovan (1949) 33 Cal.2d 717,

722-723.)

Discussion

As

a preliminary matter, Defendant failed to file a notice of related motion in Case No. 26STCV00341 ("First-Filed Action"), which was necessary for this Court to recognize the two cases are related. This was Defendant's first procedural error. Defendant's second procedural error was failing to move for consolidation in the First-Filed Action rather than this later filed action.

Accordingly,
Defendant's motion is denied.

Conclusion

Defendant's
unopposed motion is denied.

Moving
Party to give notice.

Dated: June _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court

[1] The Court notes Defendant's reply indicates that the motion for a stay is withdrawn; therefore, the instant motion is treated only as a motion to consolidate.